

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Cooper	Team: Team # 1	CCRB Case #: 201406200	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 06/22/2014 1:02 AM	Location of Incident: West 111th Street and Adam Clayton Powell Boulevard	Precinct: 28	18 Mo. SOL 12/22/2015	EO SOL 12/22/2015	
Date/Time CV Reported Mon, 06/23/2014 12:32 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/23/2014 12:32 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Paul Scott	16416	942527	028 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Matthew Meister	12882	952001	028 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A.POM Paul Scott	Discourtesy: PO Paul Scott spoke discourteously to § 87(2)(b)				

Case Summary

On June 22, 2014, at approximately 1:02 a.m., § 87(2)(b) was attending a cook out on West 111th Street between Adam Clayton Powell Boulevard and Lenox Avenue in Manhattan. Officers arrived at the location and requested the civilians that were present to disperse. § 87(2)(b) began to leave the location but returned when she realized that her cousin had the keys to her house. PO Scott and PO Meister placed her into handcuffs. § 87(2)(b) asked the officers, “what the hell? What happened? What did I do?” PO Scott responded “Shut your big ass mouth” and then told § 87(2)(b) “Shut the fuck up” (**Allegation A**). § 87(2)(b) also alleged that PO Scott continued cursing until she was placed inside a marked police vehicle. As a result of this incident, § 87(2)(b) was arrested for charges relating to § 87(2)(b) (encl.C9).

Mediation, Civil, and Criminal Histories

Due to § 87(2)(b)'s pending criminal case, this case was unsuitable for mediation. On December 5, 2014, a FOIL request was sent to the New York City Comptroller's Office and the status of a Notice of Claim for § 87(2)(b) is pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer Histories

- This is § 87(2)(b)'s first time filing a CCRB complaint (encl.A2).
- PO Scott has been a member of service for eight years and there are no substantiated CCRB allegations against him, and only one unsubstantiated allegation of Property Damage (encl.A1).

Findings and Recommendations

Allegation A- Discourtesy: PO Paul Scott spoke discourteously to § 87(2)(b)

It is undisputed that when officers responded to the location there was a large number of civilians present and they were requested to leave more than once by different officers. It is also undisputed that § 87(2)(b) did return to the location shortly after being asked to leave.

§ 87(2)(b) who prior to the incident had consumed one shot of Hennessey and denied using any narcotics, stated that PO Meister grabbed her by the wrist without issuing her any commands. § 87(2)(b) asked, “What the hell? What happened? What did I do?” PO Scott then approached § 87(2)(b) and placed her in handcuffs. § 87(2)(b) alleged that PO Scott said, “Shut your big ass mouth” and “Shut the fuck up.” In her initial intake call, § 87(2)(b) alleged that PO Scott said, “I fucking told you to take your stupid ass home but you didn’t listen.” When § 87(2)(b) asked PO Scott if she was being arrested PO Scott responded, “Shut the fuck up.” § 87(2)(b) was transported to the 28th Precinct stationhouse (encl. B4-B5), where a bag of marijuana was recovered.

On August 7, 2014, § 87(2)(b) provided a phone statement. § 87(2)(b) stated she saw § 87(2)(b) being placed in handcuffs. § 87(2)(b) heard an officer near her say, “Back the

fuck up or you'll get locked up, too.” That officer was not the officer that placed § 87(2)(b) in handcuffs (encl. B8).

PO Scott stated when he instructed § 87(2)(b) and the other civilians to leave the location, § 87(2)(b) returned several minutes later. PO Scott approached § 87(2)(b) and told her to leave. When he tried to obtain her identification, § 87(2)(b) attempted to strike him with a fist. PO Meister approached and helped PO Scott place § 87(2)(b) in handcuffs. During the interaction § 87(2)(b) was using profanity and acted in an aggressive and combative manner. PO Scott denied using profanity during the interaction (encl. C1-18).

PO Meister did not see § 87(2)(b) get placed into handcuffs nor did he help to place her into handcuffs. PO Meister did not hear any officers tell § 87(2)(b) “Shut your big ass mouth” or “Shut the fuck up.” PO Meister and PO Valerio transported § 87(2)(b) to the 28th Precinct stationhouse (encl. C19 - C24).

§ 87(2)(g)

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Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date